

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

v.

Amentum Government Services Parent
Holdings LLC,
CLARENCE XANDER, JANICE HUGHES,
HEATHER GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and
YUSEF ABDUL-JAMI,

Defendants.

C.A. No.: 3:25-cv-01447-MCR-ZCB

FIFTH AMENDED COMPLAINT

I. INTRODUCTION

1. Plaintiff was employed by **Amentum** as a **Non-Destructive-Inspection (NDI) Technician** at the **NAS Whiting Field** facility in **Milton, Florida** from **November 18, 2024** until her unlawful termination on **October 29, 2025**.
2. During her employment Plaintiff repeatedly reported safety, quality, and compliance violations and complained of gender-based discrimination, harassment, and retaliation.

Case No. 3:25-cv-01447-MCR-ZCB

3. Defendants responded by creating a hostile work environment, fabricating disciplinary actions, and ultimately terminating Plaintiff in retaliation for her protected activity.
4. Plaintiff now seeks redress for violations of her federal statutory rights, for tortious conduct under Florida law, and for the damages she has suffered.

II. JURISDICTION AND VENUE

5. This Court has **subject-matter jurisdiction** under **28 U.S.C. §§ 1331** (federal question) and **1367** (supplemental jurisdiction).
6. The claims arise under **Title VII** of the Civil Rights Act of 1964, **42 U.S.C. §§ 2000e-2** and **2000e-3**, the **Florida Whistleblower Claim Fla. Stat. § 448.102(3)** and various Florida statutes.
7. **Venue** is proper in this District because a substantial part of the events giving rise to the claims occurred at the NAS Whiting Field site in Milton, FL, in Santa Rosa County and Defendants conduct business in this Division.

III. PARTIES

8. **Plaintiff** – Debra Nelson, a resident of North Charleston, South Carolina.
9. **Defendant Amentum** – Amentum Government Services Parent Holdings LLC, a federal-contractor that employed Plaintiff and is an “employer” within the meaning of Title VII, 42 U.S.C. § 2000e-2(a).
10. **Individual Defendants** – Clarence Xander, Janice Hughes, Heather Gunn, Dakota Thomas, Elias Velasquez, and Yusef Abdul-Jami were, at all relevant times, employees of Amentum in supervisory or managerial capacities and acted pursuant to Amentum’s policies.

Case No. 3:25-cv-01447-MCR-ZCB

IV. EXHAUSTION OF ADMINISTRATIVE REMEDIES

11. Plaintiff filed **one charge** with the **Equal Employment Opportunity Commission (EEOC)** alleging gender discrimination, hostile work environment, and retaliation. The charge was filed on **August 14, 2025** (EEOC Charge No. 510-2025-08373).
12. The EEOC issued a **Right-to-Sue** notice to Plaintiff on **August 14, 2025**, satisfying the statutory exhaustion requirement of **42 U.S.C. § 2000e-5(b)**.
13. Accordingly, Plaintiff's Title VII claims are timely and properly exhausted.

V. FACTUAL BACKGROUND

14. A. Employment and Initial Harassment

- Plaintiff began employment with Amentum at the **NAS Whiting Field** facility on **November 18, 2024** as an NDI Technician.
- On **May 28, 2025**, Plaintiff was called into a meeting in the equipment room at 2:25 p.m. (five minutes before her shift ended). Present were Supervisor **Elias Velasquez**, Union Representative **Jimmy Murphy**, Maintenance Supervisor **Dakota Thomas**, NDI Technician **Yusef Abdul-Jami**, and Plaintiff.
- During the meeting Plaintiff was questioned about the contents of Locker 2. Plaintiff pointed to Yusef Abdul-Jami because he was supposed to be responsible for locker 2. When Plaintiff continued to reference Yusef as the responsible party Supervisor **Velasquez** shouted, "**Plaintiff don't have to have an attitude and Plaintiff don't need this 'f__ing shit in here*.'**" The other men said nothing. Plaintiff told Velasquez that he doesn't have the right to be

Case No. 3:25-cv-01447-MCR-ZCB

cursing at her; Velasquez continued questioning Plaintiff about Locker 2 despite Yusef being the one ultimately responsible for it.

15. Plaintiff immediately reported the incident to **Human Resources**.

16. **B. Retaliatory Conduct Begins**

- On **May 29, 2025**, a meeting was held with Union Chief Steward **James Carnley**, HR Generalist **Janice Hughes**, Business Manager **Heather Gunn**, Site Manager **Clarence Xander**, Supervisor **Dakota Thomas**, and Plaintiff. The parties discussed Velasquez's cursing and Plaintiff's concerns about locker-assignment, work load balance and process-control compliance.
- **Xander** instructed Plaintiff that she was "**not to text Yusef anymore**." He further characterized her text message response to Yusef as "**aggressive**" and said she had an "**attitude**." No discipline was imposed on Velasquez for cursing at Plaintiff.

17. **C. Leave of Absence and Write-Up**

- Plaintiff began a **medical leave of absence** on **May 30, 2025** because of the hostile environment.
- On **August 1, 2025**, despite prior approval from Supervisor **Velasquez** and Payroll to be off without pay, Plaintiff was **written up for a "no-call-no-show"**.
- On **August 5, 2025**, Plaintiff spoke with a Corporate Representative and told of her intent to file a lawsuit. Plaintiff filed a **formal Ethics complaint** with Amentum alleging gender-based mischaracterization and retaliatory conduct.

Case No. 3:25-cv-01447-MCR-ZCB

- The same day, Plaintiff was **accused** by Corporate of saying, “**Who the f* do** Plaintiff think Plaintiff are**,” to Supervisor Elias Velasquez, a statement she categorically denies. Corporate refused to disclose who made the accusation.

18. D. Deposition and Termination

- On **October 28, 2025**, Plaintiff gave sworn deposition testimony in a separate federal discrimination lawsuit (Nelson v. Curtiss-Wright), describing discriminatory and retaliatory conduct by Amentum.
- **Less than twenty-four hours later, on October 29, 2025**, Amentum terminated Plaintiff. The termination letter, dated 3:06 p.m., cited “unauthorized leave” and “unprofessional conduct” despite the EEOC Right-to-Sue notices, prior approvals for leave and attempts to schedule a step 3 meeting with the Union Representative Jamie Littlefield.
- On **October 31, 2025**, defense counsel in the separate case issued a subpoena that referenced Plaintiff’s termination, demonstrating Amentum’s knowledge of the timing and coordination of the adverse action.

19. E. Ongoing Harm

- Plaintiff has suffered loss of wages, loss of benefits, severe emotional distress, anxiety, sleep disturbances, and reputational harm.

VI. CLAIMS FOR RELIEF

COUNT I – GENDER DISCRIMINATION (Title VII)

Plaintiff asserts all claims arising under Title VII of the Civil Rights Act of 1964 against Defendant Amentum only.

20. Plaintiff is a **female** employee, a protected class under Title VII.

Case No. 3:25-cv-01447-MCR-ZCB

21. Amentum **treated Plaintiff less favorably** than similarly situated **male** employees (e.g., Abdul-Jami) with respect to:
 - a. **Job assignments** – Plaintiff was expected and being coerced to take on more of the work load and time-consuming tasks, while her male coworker received lighter assignments.
 - b. **Performance evaluations** – Plaintiff received a written warning based on alleged conduct and demeanor, while similarly situated male coworkers were not disciplined for comparable workplace interactions or conduct.
22. The disparate treatment was **motivated by Plaintiff's gender**, as shown by the gender-based language used by Xander (“aggressive,” “attitude”) and the pattern of protecting male employees while penalizing Plaintiff.
23. Plaintiff suffered **adverse employment consequences**, including loss of pay, loss of promotion opportunities, and emotional distress.
24. Amentum's conduct violates Title VII, 42 U.S.C. §§ 2000e-2(a) and 2000e-3(a).

COUNT II – RETALIATION (Title VII)

25. Plaintiff engaged in **protected activity** by:
 - a. Filing the EEOC charge (August 14, 2025).
 - b. Reporting safety, quality, and compliance violations to management (May 28–29, 2025).
 - c. Plaintiff's termination was **motivated by her protected disclosures** and by her protected deposition testimony, making the termination unlawful.
 - d. Giving sworn deposition testimony on **October 28, 2025**.

Case No. 3:25-cv-01447-MCR-ZCB

26. Shortly after each protected activity, Amentum took **adverse employment actions**:
- a. **Write-up** for “no-call-no-show” on **August 1, 2025** despite prior approval.
 - b. **Fabricated written warning** on **August 6, 2025** for alleged misconduct for unauthorized time off on August 1, 2025.
 - c. **Termination** on **October 29, 2025**, less than 24 hours after the deposition.
- Plaintiff’s termination on October 29, 2025, one day after her protected deposition testimony, constitutes retaliatory discharge.
27. The **close temporal proximity** between Plaintiff’s protected activity and Amentum’s adverse actions, along with the escalation of discipline and retaliatory conduct that followed, demonstrates a causal link.
28. Amentum’s conduct violates Title VII’s anti-retaliation provision, 42 U.S.C. § 2000e-3(a).

COUNT III – HOSTILE WORK ENVIRONMENT (Title VII)

29. Plaintiff was subjected to **unwelcome harassment** because of her sex, including:
- a. **Verbal abuse** by Supervisor **Elias Velasquez** on **May 28, 2025** (cursing at Plaintiff).
 - b. **Derogatory comments** by Site Manager, **Xander** that stated Plaintiff’s inquiry into what she was accused of saying “**didn’t matter**”.
 - c. **Failure of management** to investigate or discipline the harassers despite Plaintiff’s complaints.

Case No. 3:25-cv-01447-MCR-ZCB

30. The harassment was **severe and pervasive** enough to **alter the terms and conditions** of Plaintiff's employment, creating an abusive environment that caused anxiety, sleeplessness, and two different medical leaves of absences.
31. Amentum **knew or should have known** of the harassment and **failed to take prompt remedial action**, violating Title VII.

COUNT IV – DEFAMATION (Florida Law) (Velasquez, Xander, Thomas and Hughes)

32. On **August 5, 2025**, **Janice Hughes** and **Dakota Thomas** circulated a written memorandum to Amentum management stating that Plaintiff **"took unauthorized leave"**.
33. The statements were **false**; Plaintiff's leave was approved by Supervisor Elias Velasquez and authorized by payroll.
34. Plaintiff was accused of cursing at the meeting on May 28, 2025, which Plaintiff denied, in the presence of Dakota Thomas, Elias Velasquez, Yusef Abdul-Jami and Jimmy Murphy. That never happened and Site Manager Clarence Xander who stated that "Plaintiff cursed too" would not disclose to **Plaintiff** what she was accused of saying. The false statements were **communicated to third parties** (Amentum management and coworkers) and **placed in Plaintiff's personnel file**, causing reputational harm and contributing to her termination.
35. Defendants acted with **actual malice or reckless disregard** for the truth.
36. Plaintiff therefore sustains a claim for **defamation under Florida common law**.

COUNT V – INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (Florida Law)

Case No. 3:25-cv-01447-MCR-ZCB

37. Defendants engaged in **extreme and outrageous conduct**, including:
- a. **Fabricating disciplinary allegations** that Plaintiff took “unauthorized leave.”
 - b. **Coordinating her termination** immediately after her protected deposition testimony:
 - c. **Allowing Supervisor Elias Velasquez to verbally assault** Plaintiff without intervention.
38. The conduct was **beyond all possible bounds of decency** and was intended to cause severe emotional distress.
39. Plaintiff suffered **humiliation, anxiety, sleeplessness, and ongoing emotional trauma**.
40. Plaintiff therefore sustains a claim for **intentional infliction of emotional distress** under Florida law.

COUNT VI – CIVIL CONSPIRACY (42 U.S.C. § 1985(3)) (Xander, Hughes, Gunn, Thomas, Velasquez, and Abdul-Jami)

42. Defendants Amentum, Clarence Xander, JaNice Hughes, Heather Gunn, Dakota Thomas, Elias Velasquez, and Yusef Abdul-Jami knowingly acted in concert and agreement to deprive Plaintiff of equal protection of the laws and equal privileges and immunities on the basis of sex.
43. Defendants acted outside the normal scope of legitimate employment functions by concealing safety violations, suppressing protected reporting, discrediting Plaintiff through gender-based characterizations, and retaliating against Plaintiff for objecting to unlawful conduct.

Case No. 3:25-cv-01447-MCR-ZCB

44. In furtherance of the conspiracy, Defendants engaged in coordinated conduct to protect Yusef Abdul-Jami despite known safety violations, including the following overt acts:

- a. Multiple supervisors had actual knowledge of FAA-related safety violations involving penetrant process controls;
- b. No disciplinary action or corrective measures were taken against Mr. Abdul-Jami despite that knowledge; and
- c. Affected aircraft were not removed from service or reinspected, allowing the violations to continue.

45. Defendants further acted in coordination to discredit Plaintiff and suppress her safety reporting through gender-based mischaracterizations, including the following overt acts:

- a. Plaintiff was labeled “aggressive” and accused of having an “attitude” in response to reporting safety and regulatory violations;
- b. These characterizations were used to divert attention from the reported FAA violations to Plaintiff’s demeanor; and
- c. Similarly situated male employees were not subjected to comparable character attacks or scrutiny.

46. Defendants further acted in coordination to conceal accusations against Plaintiff and manipulate disciplinary procedures, including the following overt acts:

- a. Alleged accusations against Plaintiff were concealed for several months and not disclosed despite repeated requests;

Case No. 3:25-cv-01447-MCR-ZCB

- b. No meaningful investigation or verification of the accusations was conducted;
and
- c. The concealed accusations were later used to justify adverse employment actions.

47. As a direct and proximate result of Defendants' coordinated and discriminatory acts, Plaintiff was deprived of equal protection of the laws and equal privileges and immunities, including the right to be free from sex-based discrimination and retaliation in the terms and conditions of employment. Plaintiff suffered damages including, but not limited to, emotional distress, loss of income and employment benefits, damage to professional reputation, and other economic and non-economic losses.

48. Defendants' conduct, as alleged herein, constitutes an actionable civil conspiracy in violation of 42 U.S.C. § 1985(3).

COUNT VII – NEGLIGENT SUPERVISION (Florida Law)

49. Amentum knew or should have known that its supervisors and managerial employees, including Clarence Xander, Dakota Thomas, Elias Velasquez, JaNice Hughes, and Heather Gunn, were engaging in unsafe, retaliatory, and procedurally improper conduct and failed to properly supervise, train, or discipline them.

50. Defendants' negligent supervision included, but was not limited to:

- a. Failing to supervise and correct documented FAA-related safety violations after notice;
- b. Allowing unsafe inspection practices to continue without remediation;
- c. Permitting false or unverified accusations against Plaintiff to remain concealed and unresolved;

Case No. 3:25-cv-01447-MCR-ZCB

- d. Failing to supervise the disciplinary process, resulting in retaliatory and unverified discipline; and
- e. Failing to implement or verify remedial training after notice of discriminatory and retaliatory conduct.

51. Defendants' failure to properly supervise, train, or discipline was a proximate cause of Plaintiff's emotional distress and economic losses.

52. Plaintiff therefore sustains a claim for **negligent supervision** under Florida law.

COUNT VIII – WHISTLEBLOWER RETALIATION (Fla. Stat. § 448.102(3))

53. Plaintiff engaged in protected activity under **Fla. Stat. § 448.102(3)** by objecting to and refusing to participate in violations of law, rule, or regulation.

54. Following Plaintiff's protected whistleblowing activity, Defendants engaged in retaliatory actions, including:

- a. Silencing Plaintiff by instructing her not to communicate with Mr. Abdul-Jami;
- b. Subjecting Plaintiff to gender-coded criticism, including being labeled "aggressive" and having an "attitude";
- c. Shifting focus from safety and compliance concerns to Plaintiff herself;
- d. Concealing accusations against Plaintiff;
- e. Issuing a disciplinary write-up on August 6; and
- f. Escalating adverse actions after Plaintiff continued to report the violations.

VII. DAMAGES

55. As a direct result of Defendants' unlawful conduct, Plaintiff has suffered:

Case No. 3:25-cv-01447-MCR-ZCB

a. **Back Pay and Front Pay** – loss of wages and benefits

from **October 29, 2025** through the date of judgment, and future front pay for a period of **ten (10) years**.

b. **Compensatory Damages** – for emotional distress, mental anguish, loss of enjoyment of life, and reputational injury.

c. **Punitive Damages** – where Defendants acted with malice or reckless indifference to Plaintiff's federally protected rights.

d. **Attorney's Fees and Costs** – pursuant to 42 U.S.C. § 2000e-5(k) and Florida Statutes §§ 57.105, 57.1055.

VIII. PRAYER FOR RELIEF

56. **WHEREFORE**, Plaintiff respectfully requests that this Court enter judgment in her favor and award:

57. **Declaratory** relief that Defendants' conduct violated Title VII and applicable Florida law;

58. **Back Pay, Front Pay, and Lost Benefits** in an amount to be proven at trial;

59. **Compensatory damages** for emotional distress, mental anguish, and reputational injury;

60. **Punitive damages** in an amount sufficient to punish and deter Defendants;

61. **Damages** for defamation, intentional infliction of emotional distress, civil conspiracy and negligent supervision.

62. **Attorney's fees, costs, and interest** as allowed by law; and

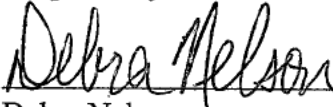
63. **Such other relief** as this Court deems just and proper.

IX. JURY DEMAND

Case No. 3:25-cv-01447-MCR-ZCB

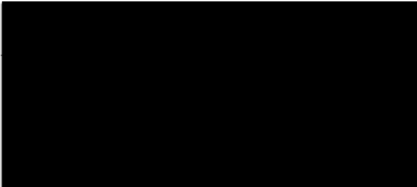
64. Plaintiff hereby **demands a trial by jury** on all issues so triable.

Respectfully submitted 29th of December, 2025,

_____

Debra Nelson

Plaintiff, Pro Se



Case No. 3:25-cv-01447-MCR-ZCB

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Fifth Amended Complaint** was served upon counsel for Defendants by email addressed as follows:

Lindsay D. Swiger

Zackary A Blanton

Jackson Lewis P.C.

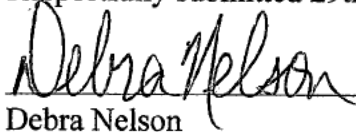
501 Riverside Avenue, Suite 902

Jacksonville, FL 32202

Email: Lindsay.Swiger@jacksonlewis.com

Zackary.Blanton@jacksonlewis.com

Respectfully submitted 29th of December, 2025,

_____

Debra Nelson

Plaintiff, Pro Se

